



File No.: EXP202209683

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated June 27, 2023, and based on the following:

FACTS

FIRST: On June 27, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure EXP202209683 against B.B.B.

SECOND: By virtue of the provisions of Article 77.2 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation, the now appellant was informed, in their capacity as complainant, of the conclusion of the procedure initiated as a result of their complaint.

THIRD: On September 2, 2023, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202209683, expressing disagreement with the contested resolution.

LEGAL GROUNDS

I

Competence

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a recourse for reconsideration. However, paragraph 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the recourse by the appellant shall not hinder its processing, provided that its true nature is deduced; therefore, the submitted document will be processed as a recourse for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

In accordance with the provisions of Article 62.5 of the LPACAP, the appellant lacks the status of interested party in the sanctioning procedure, as it states that the filing of a complaint does not, by itself, confer the status of interested party in the procedure. Furthermore, by virtue of Article 116 b) of the LPACAP, the lack of standing of the appellant is a cause for inadmissibility of the recourse.

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In view of the aforementioned provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection dated June 27, 2023, in the sanctioning procedure EXP202209683.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

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